

DECISION No 565/2014/EU OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL

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DECISION No 565/2014/EU OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL
of 15 May 2014

introducing a simplified regime for the control of persons at the external borders based on the unilateral recognition by Bulgaria, Croatia, Cyprus and Romania of certain documents as equivalent to their national visas for transit through or intended stays on their territories not exceeding 90 days in any 180-day period and repealing Decisions No 895/2006/EC and No 582/2008/EC

THE EUROPEAN PARLIAMENT AND THE COUNCIL OF THE EUROPEAN UNION,

Having regard to the Treaty on the Functioning of the European Union, and in particular points (a) and (b) of Article 77(2) thereof,

Having regard to the proposal from the European Commission,

After transmission of the draft legislative act to the national parliaments,

Acting in accordance with the ordinary legislative procedure (1),

Whereas:

(1)

Pursuant to Article 4(1) of the 2011 Act of Accession, Croatia, which acceded to the Union on 1 July 2013, is required from that date to subject nationals of the third countries listed in Annex I to Council Regulation (EC) No 539/2001 (2) to a visa requirement.

(2)

Pursuant to Article 4(2) of the 2011 Act of Accession, the provisions of the Schengen acquis on the conditions and criteria for issuing uniform visas, as well as the provisions on mutual recognition of visas and on the equivalence between residence permits/long stay visas and short stay visas, only apply to Croatia after adoption of a Council decision to that effect. However, they are binding on Croatia from the date of accession.

(3)

Croatia is therefore required to issue national visas for entry into or transit through its territory to third-country nationals holding a uniform visa or long-stay visa or residence permit issued by a Member State fully implementing the Schengen acquis or a similar document issued by Bulgaria, Cyprus and Romania, which do not yet fully implement it.

(4)

The holders of documents issued by Member States fully implementing the Schengen acquis and documents issued by Bulgaria, Cyprus and Romania do not represent any risk for Croatia as they have been subject to all necessary controls by those Member States. In order to avoid imposing unjustified

additional administrative burdens on Croatia, common rules should be adopted authorising Croatia unilaterally to recognise certain documents issued by those Member States as equivalent to its national visas and to establish a simplified regime for the control of persons at its external borders based on that unilateral equivalence.

(5)

The common rules introduced by Decision No 895/2006/EC of the European Parliament and of the Council (3) and by Decision No 582/2008/EC of the European Parliament and of the Council (4) should be repealed. With regard to Cyprus, which has implemented the common regime established by Decision No 895/2006/EC since 10 July 2006, and to Bulgaria and Romania, which have implemented the common regime established by Decision No 582/2008/EC since 18 July 2008, common rules should be adopted authorising Bulgaria, Cyprus and Romania, like Croatia, unilaterally to recognise certain documents issued by Member States fully implementing the Schengen acquis as well as similar documents issued by Croatia, as equivalent to its national visas and to establish a simplified regime for the control of persons at their external borders based on that unilateral equivalence. This Decision is without prejudice to Bulgaria and Romania's objective of becoming Schengen Member States without delay.

(6)

The simplified regime laid down in this Decision should apply for a transitional period, until the date to be determined in a Council decision as referred to in the first subparagraph of Article 3(2) of the 2003 Act of Accession in respect of Cyprus, in the first subparagraph of Article 4(2) of the 2005 Act of Accession in respect of Bulgaria and Romania and in the first subparagraph of Article 4(2) of the 2011 Act of Accession in respect of Croatia, subject to possible transitional provisions in respect of documents issued before that date.

(7)

Participation in the simplified regime should be optional, without imposing on the Member States obligations additional to those laid down by the 2003 Act of Accession, the 2005 Act of Accession or the 2011 Act of Accession.

(8)

The common rules should apply to short-term uniform visas, long-stay visas and residence permits issued by Member States fully implementing the Schengen acquis, to visas with limited territorial validity issued to an applicant who holds a travel document that is not recognised by one or more, but not all, Member States, in accordance with Regulation (EC) No 810/2009 of the European Parliament and of the Council (5) (the 'Visa Code') and by the countries associated with the implementation, application and development of the Schengen acquis as well as to short-term visas, long-term visas and residence permits issued by Bulgaria, Croatia, Cyprus and Romania. The recognition of a document should be limited to the period of its validity.

(9)

The entry conditions for third-country nationals whose intended stays on the territory of the Member States have a duration of no more than 90 days in any 180-day period, as laid down in Regulation (EC) No 562/2006 of the European Parliament and of the Council (6), must be fulfilled, with the exception of the requirement to be in possession of a valid visa, if required pursuant to Regulation (EC) No 539/2001, in so far as this Decision sets up a regime of unilateral recognition by Bulgaria, Croatia, Cyprus and Romania of certain documents issued by Member States fully implementing the Schengen acquis and similar documents issued by Bulgaria, Croatia, Cyprus and Romania for transit through or intended stays on their territories not exceeding 90 days in any 180-day period.

(10)

Since the objective of this Decision, namely the introduction of a regime of unilateral recognition by Bulgaria, Croatia, Cyprus and Romania of certain documents issued by other Member States, cannot be

sufficiently achieved by the Member States but can rather be better achieved at Union level, the Union may adopt measures, in accordance with the principle of subsidiarity as set out in Article 5 of the Treaty on European Union. In accordance with the principle of proportionality, as set out in that Article, this Decision does not go beyond what is necessary in order to achieve that objective.

(11)

As regards Iceland and Norway, this Decision constitutes a development of the provisions of the Schengen acquis within the meaning of the Agreement concluded by the Council of the European Union and the Republic of Iceland and the Kingdom of Norway concerning the latter's association with the implementation, application and development of the Schengen acquis (7), which fall within the area referred to in Article 1, point (B), of Council Decision 1999/437/EC (8).

(12)

As regards Switzerland, this Decision constitutes a development of the provisions of the Schengen acquis within the meaning of the Agreement between the European Union, the European Community and the Swiss Confederation on the Swiss Confederation's association with the implementation, application and development of the Schengen acquis (9), which fall within the area referred to in Article 1, point (B), of Decision 1999/437/EC read in conjunction with Article 3 of Council Decision 2008/146/EC (10).

(13)

As regards Liechtenstein, this Decision constitutes a development of the provisions of the Schengen acquis within the meaning of the Protocol between the European Union, the European Community, the Swiss Confederation and the Principality of Liechtenstein on the accession of the Principality of Liechtenstein to the Agreement between the European Union, the European Community and the Swiss Confederation on the Swiss Confederation's association with the implementation, application and development of the Schengen acquis (11), which fall within the area referred to in Article 1, point (B), of Decision 1999/437/EC read in conjunction with Article 3 of Council Decision 2011/350/EU (12).

(14)

In accordance with Articles 1 and 2 of Protocol No 22 on the position of Denmark, annexed to the Treaty on European Union and to the Treaty on the Functioning of the European Union, Denmark is not taking part in the adoption of this Decision and is not bound by it or subject to its application.

(15)

This Decision constitutes a development of the provisions of the Schengen acquis in which the United Kingdom does not take part, in accordance with Council Decision 2000/365/EC (13); the United Kingdom is therefore not taking part in its adoption and is not bound by it or subject to its application.

(16)

This Decision constitutes a development of the provisions of the Schengen acquis in which Ireland does not take part, in accordance with Council Decision 2002/192/EC (14); Ireland is therefore not taking part in its adoption and is not bound by it or subject to its application,

HAVE ADOPTED THIS DECISION:

Article 1

This Decision introduces a simplified regime for the control of persons at the external borders whereby Bulgaria, Croatia, Cyprus and Romania may recognise unilaterally as equivalent to their national visas for transit through or intended stays on their territory not exceeding 90 days in any 180-day period the documents referred to in Article 2(1) and Article 3 of this Decision issued to third-country nationals subject to a visa obligation pursuant to Regulation (EC) No 539/2001.

The implementation of this Decision shall not affect the checks to be carried out on persons at the external borders in accordance with Articles 5 to 13 and 18 and 19 of Regulation (EC) No 562/2006.

Article 2

1. Bulgaria, Croatia, Cyprus and Romania may consider as equivalent to their national visas, for transit through or intended stays on their territory not exceeding 90 days in any 180-day period, the following documents issued by the Member States fully implementing the Schengen acquis, irrespective of the nationality of the holders:

(a)

a 'uniform visa' as defined in point (3) of Article 2 of the Visa Code, valid for two or multiple entries;

(b)

a 'long-stay visa' as referred to in Article 18 of the Convention implementing the Schengen Agreement (15);

(c)

a 'residence permit' as defined in point (15) of Article 2 of Regulation (EC) No 562/2006.

2. Bulgaria, Croatia, Cyprus and Romania may also consider as equivalent to their national visas, for transit through or intended stays on their territory not exceeding 90 days in any 180-day period visas with limited territorial validity issued in accordance with the first sentence of Article 25(3) of the Visa Code.

3. If Bulgaria, Croatia, Cyprus or Romania decide to apply this Decision, they shall recognise all the documents referred to in paragraphs 1 and 2, regardless of which Member State issued the document, unless they are affixed to travel documents that they do not recognise or to travel documents issued by a third country with which they do not have diplomatic relations.

Article 3

1. If Bulgaria, Croatia, Cyprus or Romania decide to apply Article 2, they may, in addition to the documents referred to in that Article, recognise as equivalent to their national visas for transit through or intended stays on their territory not exceeding 90 days in any 180-day period:

(a)

national short-stay visas and national long-stay visas issued by Bulgaria, Croatia, Cyprus, or Romania in the uniform format laid down by Council Regulation (EC) No 1683/95 (16);

(b)

residence permits issued by Bulgaria, Croatia, Cyprus or Romania in accordance with the uniform format laid down by Council Regulation (EC) No 1030/2002 (17),

unless such visas and residence permits are affixed to travel documents that those Member States do not recognise or to travel documents issued by a third country with which they do not have diplomatic relations.

2. Documents issued by Bulgaria which may be recognised are listed in Annex I.

Documents issued by Croatia which may be recognised are listed in Annex II.

Documents issued by Cyprus which may be recognised are listed in Annex III.

Documents issued by Romania which may be recognised are listed in Annex IV.

Article 4

The period of validity of the documents referred to in Articles 2 and 3 shall cover the duration of the transit or stay.

Article 5

Bulgaria, Croatia, Cyprus and Romania shall notify the Commission within 20 working days of the entry into force of this Decision, if they decide to apply this Decision. The Commission shall publish the information communicated by those Member States in the Official Journal of the European Union.

Those notifications shall, where relevant, specify the third countries with regard to which Bulgaria, Croatia, Cyprus and Romania do not, in the absence of diplomatic relations, apply this Decision pursuant to Article

2(3) and Article 3(1).

Article 6

Decisions No 895/2006/EC and No 582/2008/EC are repealed.

Article 7

This Decision shall enter into force on the twentieth day following that of its publication in the Official Journal of the European Union.

It shall apply until the date determined by a Council decision adopted pursuant to the first subparagraph of Article 3(2) of the 2003 Act of Accession in respect of Cyprus, to the first subparagraph of Article 4(2) of the 2005 Act of Accession in respect of Bulgaria and Romania and to the first subparagraph of Article 4(2) of the 2011 Act of Accession in respect of Croatia, on which all the provisions of the Schengen acquis in the field of the common visa policy and the movement of third-country nationals legally residing within the territory of the Member States shall apply to the Member State concerned.

Article 8

This Decision is addressed to Bulgaria, Croatia, Cyprus and Romania.

Done at Brussels, 15 May 2014.